Software as a Service Agreement

This Software as a Service Agreement (the "Agreement") is entered into as of February 25, 2026 (the "Effective Date") by and between **Seabright Hotels & Resorts Ltd**, a hotel group that owns and operates six hotels (the "Customer"), and **Stayflow Property Systems Inc** (the "Supplier"). The Customer and the Supplier are each a "Party" and together the "Parties."

Recitals

WHEREAS, the Customer owns and operates six hotels (each a "Property" and together the "Properties") and requires a hosted property management system and related services to support the operation of the Properties;

WHEREAS, the Supplier develops, hosts and supports software-as-a-service property management solutions and has represented that it has the expertise, personnel and infrastructure to provide the Services to the Customer at the Properties; and

WHEREAS, the Parties wish to set out the terms on which the Supplier will provide, and the Customer will pay for, the Services.

NOW, THEREFORE, in consideration of the mutual covenants herein and other good and valuable consideration, the receipt and sufficiency of which are acknowledged, the Parties agree as follows:

Section 1. Definitions

"Affiliate" means any entity controlling, controlled by or under common control with a Party.

"Authorized Users" means the employees and contractors of the Customer and its Affiliates who are permitted to use the Services at or for the Properties.

"Customer Data" means all data, content and information submitted to or generated by the Services by or on behalf of the Customer, including Personal Data of the Customer's customers and employees and payment-card data.

"DPA" means the Data Processing Agreement between the Parties described in Section 9.

"Fees" means the fees set out in Section 4.

"PMS" means the Supplier's hosted property management system forming part of the Services.

"Security Incident" means any actual or reasonably suspected unauthorized access to, or acquisition, loss, disclosure or alteration of, Customer Data.

"Services" means the hosted PMS and related software, hosting, maintenance, support and other services described in this Agreement, as delivered at the Properties.

"Term" has the meaning given in Section 3.

Section 2. Services and License

2.1 **Provision of Services.** The Supplier shall provide the Services to the Customer for use at each Property throughout the Term, with due skill and care and in accordance with good industry practice and applicable law.

2.2 **Right of Use.** The Supplier grants the Customer a non-exclusive, non-transferable (except under Section 13) right for Authorized Users to access and use the Services at the Properties during the Term for the Customer's internal business purposes.

2.3 **Restrictions.** The Customer shall not reverse engineer the Services, sublicense them to third parties other than as contemplated herein, or use them in violation of applicable law.

2.4 **Support.** The Supplier shall provide technical support and maintenance, including updates and corrections, as part of the Fees.

Section 3. Term and Renewal

3.1 **Initial Term.** This Agreement commences on the Effective Date and continues until February 25, 2029, a period of thirty-six (36) months (the "Initial Term"), unless terminated earlier under Section 11.

3.2 **Renewal.** Upon expiry of the Initial Term, this Agreement renews automatically for successive periods of twelve (12) months each (each a "Renewal Term" and, with the Initial Term, the "Term"), unless either Party gives the other at least ninety (90) days' written notice of non-renewal before the end of the then-current term.

3.3 **No Termination for Convenience.** Neither Party may terminate this Agreement for convenience. This Agreement may be terminated only for cause in accordance with Section 11, or by non-renewal under Section 3.2.

Section 4. Fees and Payment

4.1 **Annual Fees.** The Customer shall pay the Supplier annual Fees of USD 348,000 for the Services. The total contract value over the Initial Term is USD 1,044,000.

4.2 **Invoicing.** The Supplier shall issue valid invoices in accordance with this Agreement, each identifying the Property or Properties and the period to which it relates.

4.3 **Payment Terms.** The Customer shall pay undisputed invoices within thirty (30) days of receipt of a valid invoice.

4.4 **Disputed Amounts.** The Customer may withhold amounts disputed in good faith by written notice stating the grounds, and the Parties shall work promptly to resolve the dispute. The Supplier shall not suspend the Services on account of amounts so disputed.

4.5 **Taxes.** Fees are exclusive of applicable sales, use and value-added taxes, which shall be payable by the Customer where properly chargeable and shown on a valid invoice.

Section 5. Service Levels

5.1 **Availability.** The Supplier shall keep the PMS available at least 99.9% of the time in each calendar month, excluding downtime for scheduled maintenance notified to the Customer in advance and events outside the Supplier's reasonable control.

5.2 **Security Incident Notification.** The Supplier shall notify the Customer of any Security Incident without undue delay and in any event within twenty-four (24) hours of becoming aware of it, and shall provide information reasonably requested to investigate and remediate it.

5.3 **Remedies.** If the Supplier fails to meet the availability level in any month, the Supplier shall promptly investigate, remedy the cause and provide a written root-cause report. Repeated or material failure may constitute a material breach under Section 11.

Section 6. Confidentiality

6.1 **Obligations.** Each Party (the "Recipient") shall keep confidential all non-public information disclosed by the other Party (the "Discloser") that is marked confidential or would reasonably be understood to be confidential, shall use it only to perform or receive the benefit of this Agreement, and shall not disclose it except to personnel and advisers who need to know it and are bound by equivalent obligations.

6.2 **Exceptions.** These obligations do not apply to information that is or becomes public other than through breach, was lawfully known to or independently developed by the Recipient, or is lawfully received from a third party without restriction. Disclosure required by law is permitted after notice to the Discloser where lawful.

6.3 **Survival.** The obligations in this Section 6 survive for three (3) years after this Agreement ends.

Section 7. Intellectual Property

7.1 **Supplier IP.** The Supplier retains all rights in the Services, the PMS and related software and documentation, and any improvements to them.

7.2 **Customer Data.** The Customer retains all rights in the Customer Data. The Customer grants the Supplier a limited license to process Customer Data solely to provide the Services.

7.3 **Return of Data.** On termination or expiry, the Supplier shall make Customer Data available for export in a commonly used format and, after confirmed export, securely delete it, subject to legal retention obligations.

Section 8. Warranties

8.1 **Mutual.** Each Party warrants that it has the authority to enter into and perform this Agreement.

8.2 **Services Warranty.** For thirty (30) days from the Effective Date, the Supplier warrants that the Services will perform materially in accordance with their documentation and this

Agreement. The Supplier shall correct any non-conformity reported within that period at no additional charge.

8.3 **Compliance.** The Supplier warrants that it will perform the Services in compliance with applicable law.

8.4 **Disclaimer.** Except as expressly stated in this Agreement, and to the extent permitted by law, all other warranties, express or implied, are disclaimed.

Section 9. Data Protection and Payment-Card Security

9.1 **Personal Data.** The Parties acknowledge that the Services involve processing Personal Data of the Customer's customers and employees. A DPA has been or will be executed by the Parties alongside this Agreement, and the Supplier shall process Personal Data only in accordance with the DPA and the Customer's documented instructions.

9.2 **Security.** The Supplier shall maintain appropriate technical and organizational measures to protect Customer Data against Security Incidents.

9.3 **Payment-Card Data.** The Supplier shall process payment-card data only through PCI DSS compliant systems and shall provide the Customer with an annual attestation of compliance.

Section 10. Indemnity and Limitation of Liability

10.1 **Supplier Indemnity.** The Supplier shall defend and indemnify the Customer against third-party claims alleging that the Services infringe intellectual property rights, and against losses arising from the Supplier's breach of Section 9, subject to prompt notice, reasonable cooperation and control of the defense by the Supplier.

10.2 **Customer Indemnity.** The Customer shall defend and indemnify the Supplier against third-party claims arising from the Customer's use of the Services in breach of this Agreement or applicable law, on the same conditions.

10.3 **Liability Cap.** Subject to Section 10.4, each Party's aggregate liability arising out of or in connection with this Agreement shall be limited to two (2) times the Fees paid or payable in the twelve (12) months preceding the claim.

10.4 **Exclusions.** Nothing in this Agreement limits liability for fraud, willful misconduct, death or personal injury caused by negligence, or any liability that cannot lawfully be limited. Neither Party is liable for indirect or consequential loss, or loss of profit, except where such exclusion is prohibited by law.

Section 11. Termination

11.1 **For Cause.** Either Party may terminate this Agreement by written notice if the other Party materially breaches it and, where the breach is capable of remedy, fails to remedy it within a reasonable period stated in a written notice requiring remedy, or if the other Party becomes insolvent or subject to bankruptcy or similar proceedings.

11.2 **No Convenience Termination.** For the avoidance of doubt, neither Party may terminate for convenience.

11.3 **Effect.** On termination or expiry, the Customer's right to use the Services ends, accrued rights and Section 7.3 are unaffected, and the Supplier shall provide reasonable transition assistance.

11.4 **Survival.** Sections 1, 6, 7, 10, 12 and this Section 11.4 survive termination or expiry, together with any provision intended by its nature to survive.

Section 12. Governing Law and Disputes

12.1 **Governing Law.** This Agreement and any dispute arising from it are governed by the laws of Delaware, without regard to conflict-of-laws principles.

12.2 **Escalation.** The Parties shall first attempt to resolve any dispute through good-faith discussion between senior executives before commencing proceedings, without prejudice to urgent injunctive relief.

12.3 **Jurisdiction.** Subject to Section 12.2, the courts of Delaware have exclusive jurisdiction over disputes arising from this Agreement.

Section 13. Assignment and Subcontracting

Neither Party may assign or transfer this Agreement without the other Party's prior written consent, not to be unreasonably withheld, except to a successor to all or substantially all of its business. The Supplier remains responsible for the acts and omissions of its subcontractors.

Section 14. Miscellaneous

14.1 **Notices.** Notices must be in writing and delivered by hand, recognized courier or email with confirmation to the address designated by the receiving Party in writing, and are effective on receipt.

14.2 **Entire Agreement.** This Agreement, together with the DPA, constitutes the entire agreement between the Parties on its subject matter and supersedes all prior discussions and understandings.

14.3 **Amendment and Waiver.** Amendments must be in writing and signed by both Parties. No failure or delay in exercising a right is a waiver of it.

14.4 **Severability.** If any provision is held unenforceable, the remainder continues in effect.

14.5 **Force Majeure.** Neither Party is liable for delay caused by events beyond its reasonable control, provided it promptly notifies the other and uses reasonable efforts to mitigate. This Section does not excuse payment obligations or the Supplier's obligations under Section 9.

14.6 **Counterparts.** This Agreement may be executed in counterparts, including by electronic signature, each of which is an original.

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorized representatives.

SEABRIGHT HOTELS & RESORTS LTD	**STAYFLOW PROPERTY SYSTEMS INC**
By: _____	By: _____
Name: Michael Brennan	Name: Kenji Watanabe
Title: Chief Procurement Officer	Title: Authorised Signatory
Date: February 15, 2026	Date: February 18, 2026